

**Jhabua Power Ltd
(A Joint Venture of NTPC Ltd)**

SECTION – II
INSTRUCTION TO BIDDERS (ITB)

INSTRUCTIONS TO BIDDERS**(ITB) TABLE OF CLAUSES (ITB)**

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PART A - GENERAL

1.0 INTRODUCTION

1.1 NTPC-Jhabua Power Ltd., (here in after called “NTPC-JPL” or “Employer”), wishes to receive bids for the Package named in NIT/IFB/Tender Enquiry.

1.2 Throughout these Bidding Documents, the term “Bid” and “Tender” and their derivatives (Bidder/Tenderer, Bidding/Tendering, Bidding Document/Tender Document, etc.); Bill of Quantity / Schedule of Quantity / Schedule of Quantities/ Bill of Quantities; Employer / JPL; Bid Security / Earnest Money Deposit; Security Deposit / Performance Security/ Performance Guarantee; Engineer-in-Charge / Engineer, appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other.

2.0 SOURCE OF FUNDS

Expenditure under this package is intended to be funded from internal resources and/ or borrowings by the Employer.

3.0 CONFLICT OF INTEREST

3.1 A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Employer's interests. A bidder may be considered to have a conflict of interest with one or more parties in this bidding process, if:

- a) they directly or indirectly control, or are controlled by or are under common control of another entity; or
- b) they have the same legal representative/agent for purposes of their bids; or
- c) they have relationship with each other, directly or through common third party(ies), that puts them in a position to have access to information about or influence on the bid of another Bidder; or
- d) Bidder and/or any of its allied entity(ies), which directly or indirectly control(s) or is(are) controlled by or is(are) under common control of another entity, has(ve) participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the tender; or
- e) Bidder participates in more than one bid in this bidding process.
- f) In cases of agents quoting on behalf of their principal manufacturers/service providers, one agent cannot represent two manufacturers/service providers or quote on their behalf in a particular tender enquiry. One manufacturer/service provider can also authorize only one agent. There can be only one bid from the following:
 - i) The principal manufacturer/service provider directly or through one Indian agent on his behalf; and
 - ii) Indian/foreign agent on behalf of only one principal.

For the purposes of this clause the term ‘control’ shall have the following meaning:
“Control” shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders’ agreements or voting agreements or in any other manner.

Note: If two or more CPSEs/State PSEs participate in a tender, they will not be deemed to fall under the ‘Conflict of Interest’ provisions solely because they are under common control of Government of India/State Government.

- 3.2** Bidders shall certify their compliance to Clause “Conflict of Interest” by submitting the undertaking as per the Attachment-17:

Acceptance of above condition shall be considered as Bidder's confirmation that Bidder has read and understood the Clause regarding “Conflict of Interest” and its bid is in compliance to this clause.

In case it is established that Bidder has provided any false information in pursuance of the aforesaid Clause, while competing for this contract, then its bid shall be rejected and EMD/bid security shall be forfeited.

In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid Clause, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of “Policy for Debarment from Business Dealings” and shall be dealt accordingly.

- 4.0 BIDDER'S SITE VISIT:** The Bidders are advised to visit the Site to familiarize themselves with the nature and quantum of work and site condition and obtain all necessary information as to risks, contingencies and other circumstances, which may influence or affect his tender. No extra charges consequent on any misunderstanding or otherwise shall be allowed.

PART B - BIDDING DOCUMENTS

5.0 CONTENT OF BIDDING DOCUMENTS

- 5.1** The set of Bidding Documents issued for the purpose of bidding includes one set of the following, which should be read in conjunction with amendments, if any, issued in accordance with **ITB Clause 8.0** below. Comprising of following Sections.

- I. Invitation for Bids (IFB)/Tender Enquiry/Notice Inviting Tender (NIT)**
- II. Instructions to Bidders(ITB)**
- III. Special Conditions of Contract (SCC)**
- IV. General Conditions of Contract (GCC)**
- V. Technical Specifications and Bid Drawings (Scope of Supply/Service)**
- VI. Schedule of Quantities (SOQ) / Bill of Quantities (BOQ)**
- VII. Forms and Procedures**

- 5.2** The Bidder is expected to examine all instructions, forms, terms, conditions and specifications in the Bidding Documents, before submission of his bid. Failure to furnish all information or documentation required by the Bidding Documents may result in the rejection of such bid.

5.3 Qualifying Requirements, if applicable

The qualifying requirements for the tender are specified in the NIT / Tender Enquiry.

5.4 Documents in support of meeting Qualifying Requirements

Bidders are required to submit documents to satisfactorily establish their meeting the Qualifying

Requirements stipulated in the tender.

Bidders are required to furnish the details of the past experience like authentic Work Orders/Purchase Orders/Letter of Awards/Contract Agreements, client certificates, completion certificate, etc. in support of meeting the Qualifying Requirements based on which selection is to be made as per format at Attachment 3.

Orders/Purchase Orders/Letter of Awards/Contract Agreement pertain to the work executed by Bidder for NTPC or Subsidiary / JV companies of NTPC in the past, then in respect of such Work Orders/Purchase Orders/Letter of Awards/Contract Agreements, Bidder shall not be required to enclose Client Certificate along with its Bid.

Bidders shall submit all the documents, in support of Technical Qualification Requirements (such as copy of Purchase Orders/ Work Orders/ Contract Agreements/ Client Certificates etc.), duly certified and verified for authenticity from Independent Statutory Auditor of their Company or specified Third-Party Inspection Agency (TPIA).

Further, wherever information can be drawn from books of accounts, records and other relevant documents, Bidders can also submit a certificate issued by their Independent Statutory Auditor certifying the data required for meeting the Technical Qualification Requirements.

Such bidder shall be required to submit duly certified and verified documents from their Statutory Auditors or specified TPIA in support of meeting Technical QR along with a certificate regarding verification of authenticity of documents as per the format placed at Appendix A to Attachment-3A-1 (Undertaking from Statutory Auditor) and/ or Appendix B to Attachment-3A-1 (Undertaking from TPIA). All the documents submitted by the bidder in support of meeting Technical QR shall be digitally signed by the Statutory Auditor and/ or specified TPIA.

In case documents are certified & verified for authenticity through TPIA, the verification and certification of authenticity of documents is acceptable from any of the TPIAs as mentioned at below and on NTPC tender website (<https://ntpc.tender.ntpc.co.in/>) under "Policy for Document Authentication Process in Tenders of NTPC Ltd" tab of Policy Docs. However, Bidders must verify the accreditation validity of the designated TPIA as noted below before proceeding to engage them for document certification.

- 1) Société Générale de Surveillance / SGS India Pvt. Ltd. (SGS)
- 2) International Certification Services Pvt. Ltd.
- 3) TÜV Rheinland (India) Pvt. Ltd.
- 4) TÜV SÜD South Asia Pvt. Ltd.
- 5) TÜV India Pvt. Ltd. (TÜV Nord Group)
- 6) Intertek India Pvt. Ltd.
- 7) Moody International (India) Pvt. Ltd.
- 8) RINA India Pvt. Ltd.
- 9) Competent Inspectorate and Consultants Pvt. Ltd.
- 10) KBS Certification Services Pvt. Ltd.
- 11) ICS India Pvt. Ltd.
- 12) Assure Quality Management Certification Services Pvt. Ltd.
- 13) International Inspection Services Private Limited
- 14) Hertz Inspection & Services Pvt. Ltd.
- 15) Quality Evaluation & Systems Team Pvt. Ltd.
- 16) Industrial Inspection and Verification Services (I) Pvt. Ltd.
- 17) Ravi Energie Pvt. Ltd.
- 18) IRCLASS Systems & Solutions Private Limited
- 19) Quality Services & Solutions Pvt. Ltd.
- 20) Certification Engineers International Ltd.
- 21) Aaditech Inspections & Services Pvt. Ltd.
- 22) Phistream Consulting Pvt. Ltd.
- 23) Conformity India International Pvt. Ltd.

- 24) Geochem Laboratories Pvt. Ltd.
- 25) Edlipse Engineering Global Private Limited
- 26) Dr. Amin Controllers Pvt. Ltd. (Amin)
- 27) Leon Inspection & Testing Pvt. Ltd.
- 28) LRQA Inspection Service India LLP (LRQA)
- 29) Electrical Research and Development Association
- 30) IRC Engineering Services India Pvt. Ltd.
- 31) RSJ Inspection Service Limited (RSJ)
- 32) Bureau Veritas (India) Pvt. Ltd.
- 33) Astron Certification India Pvt. Ltd.
- 34) TCRC Inspections Pvt. Ltd.
- 35) DNV Business Assurance India Pvt. Ltd.
- 36) BSCIC Certifications Pvt. Ltd.

The following link may be referred for contact details and accreditation validity of 36 TPIA Agencies as listed in the circular:

<https://nabcb.qci.org.in/inspection-body/>

Any document pertaining to reference works/ plants in support of Technical QR, which is not certified by specified TPIA or Statutory Auditor of the bidder, as per the format enclosed with the bidding documents, shall not be considered verified/ certified for the purpose of evaluation, and the bid shall be liable for rejection.

The Bidder shall be responsible to get their documents/ credentials in support of Qualifying Requirements verified & certified by their Statutory Auditor(s) and/ or specified TPIAs. All the costs pertaining to third party verification and certification (including those by statutory auditors) shall be borne by the Bidder. Employer shall have no liability (financial or otherwise) towards the same and shall not be liable for any claim/ dispute between the bidder and TPIA and/ or Statutory Auditor.

The reference works whose details have been declared in their bid shall only be considered to ascertain the bidder's compliance to the specified qualifying Requirement (QR).

Notwithstanding anything stated above, the Employer reserves the right to undertake- a physical assessment of the capacity and capabilities including financial capacity and capability of the Bidder / his Collaborator(s) / Associate(s) / Subsidiary(ies) / Group Company(ies) to perform the Contract, should the circumstances warrant such assessment in the overall interest of the Employer.

The physical assessment shall include but not be limited to the assessment of the office/facilities/banker's/reference works by the Employer. A negative determination of such assessment of capacity and capabilities may result in the rejection of the Bid.

Bidders shall certify their compliance on "Qualifying Requirements" by submitting the undertaking as per Attachment-13:

Acceptance of above condition shall be considered as bidder's confirmation to the followings:

- a) *The number of reference Plants/Orders quoted by Bidder in the bid, for establishing compliance to the specified Qualifying Requirement (QR), are in accordance with the provision specified above.*
- b) *The reference Plants/ Orders/ declared, shall only be considered for evaluation/ establishing compliance to Qualifying Requirement (QR).*
- c) *No change or substitution in respect of reference Plants/Orders for meeting the specified Qualifying Requirement (QR) shall be offered by the bidder.*

NOTES:

- A) *In the cases where appointment of Statutory Auditor is not mandatory as per statute under which bidder has been incorporated, the option of certification from specified*

TPIA shall only be considered for such bidder.

- B) If any of the Submitted Reference work executed by Bidder are directly awarded to them by JPL; then for those reference works only, Bidder shall not be required to submit Client Certificate (s) or Certificate of authenticity from Independent Statutory Auditor or specified TPIA.
- C) The undertaking/Certificate of authenticity issued from Independent Statutory Auditor or specified TPIA submitted for any reference work/s in earlier tender/s floated from JPL; can be submitted by the bidder in the present tender or any future tenders subject to fulfilment of QR criteria as stipulated in NIT. The same would be acceptable subject to conditions mentioned at NOTE at A) above.

5.5 Bid Drawings: (Refer Technical Specification for details).

The Bidder is requested to refer the Technical Specifications for the provisions in this regard.

6.0 CLARIFICATION OF BIDDING DOCUMENTS

A prospective Bidder requiring any clarification of the Bidding Document shall put the query at online portal. EMPLOYER will respond to any request for clarification or modification of the bidding documents that it receives within the timeline specified.

EMPLOYER will post the Clarifications at online portal. Bidders can view these clarifications. Bidders are advised to regularly check under Clarification/Corrigendum tab regarding posting of clarification, if any.

Bidders must check the Clarifications issued before submission of Bid. Should the Employer deem it necessary to amend the Bidding Document as a result of a clarification, it shall do so and upload the amendments in the tender on the online portal.

7.0 PRE-BID CONFERENCE (If specified in the NIT/Tender Enquiry)

- 7.1 The Employer at its discretion may organize a pre-bid conference with the prospective Bidders. The purpose of the conference will be to clarify the package related issues and to respond to the Bidder's queries, which may arise from the Bidding Documents, site visit etc. The Employer will give a notice of the pre-bid conference to the Bidders at least seven (7) days prior to the said pre-bid conference unless otherwise fixed or informed in the IFB/NIT.
- 7.2 Bidders are required to submit their questions/ clarifications/queries etc. in writing including by way of email from the registered email Id so as to reach the Employer at least 3 days before the pre-bid conference. It may not be practicable at the conference to answer the questions, which are received late.
- 7.3 Record notes of the pre-bid conference including the Employer's response to the queries raised by the Bidders in writing may be prepared and transmitted to all the prospective Bidders by the Employer. Further, any modification to the Bidding Documents which may become necessary as a result of the pre-bid conference shall be made by the Employer exclusively through an amendment to the Bidding Documents. The record notes of the pre-bid conference shall not be treated as amendment to the Bidding Documents.
- 7.4 Non-attendance of the pre-bid conference will not be a cause for disqualification of a Bidder or his bid.

8.0 ADDENDA/ CORRIGENDA/ AMENDMENTS TO BIDDING DOCUMENTS

At any time prior to the deadline for submission of bids, EMPLOYER may, for any reason, whether at its own initiative, or in response to a clarification requested by a prospective Bidder, amend the bidding documents.

The corrigendum/amendment will be posted in the tender on the online portal for viewing by the Bidder. The amendments will be binding on Bidders and it will be assumed that the information

contained therein will have been taken into account by the Bidder in its bid. Bidders are advised to regularly check the tender regarding posting of Amendments, if any.

To give prospective Bidders reasonable time to take the amendment into account in preparing their bid, EMPLOYER may, at its discretion, extend the deadline for the submission of bids

PART C - PREPARATION OF BID

9.0 COST OF BIDDING

- 9.1** The Bidder shall bear all costs associated with the preparation and submission of his bid and the Employer will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

10.0 LANGUAGE OF BID AND UNITS OF MEASURE

- 10.1** The bid and all correspondence and documents relating thereto exchanged by the Bidder and the Employer shall be written in English. Supporting documents and printed literature furnished by the Bidder may be in another language provided they are accompanied by an appropriate translation of pertinent passages into English, in which case, for the purpose of interpretation of the bid such translations shall govern.
- 10.2** The units of measurement shall be metric system of measures, unless otherwise specified elsewhere.

11.0 DOCUMENTS COMPRISING THE BID

- 11.1** The bid submitted by the Bidder shall inter alia comprise of the following documents:
- (a) Bid Form duly completed and signed by the Bidder, together with all Attachments identified in **ITB Sub-Clause 11.3** below.
 - (b) Schedule of Quantities / BOQ duly completed.

- 11.2** Bidding procedure shall be as specified in the NIT / SCC.

- 11.3** Each Bidder shall submit with his bid the following attachments:

11.3.1 TECHNO-COMMERCIAL BID

- (a) **Attachment 1: Earnest Money Deposit (If specified in the NIT/Tender Enquiry) (To be given offline in physical form and copy to be uploaded on the portal)**
Earnest Money Deposit shall be furnished in accordance with ITB Clause 14.0 in a separate sealed envelope. Bid not accompanied by the requisite Earnest Money Deposit in a separate sealed envelope, or bid accompanied by Earnest Money Deposit of insufficient value, shall not be entertained and in such case, the bid shall not be opened and rejected pursuant to ITB Sub-Clause 14.4.
- (b) **Attachment 2: Authority to Sign the bid (To be uploaded on the portal)**
The Bidder shall furnish the following to check that the person(s) signing the bid has/have the authority to sign the bid and thus establish that the bid is binding upon the Bidder during the full period of its validity in accordance with **ITB Clause No.13**.
 - i) In case of Sole Proprietorship Concern/Partnership Firm, Specimen signature of the Proprietor/all the partners duly attested by a scheduled Bank or First Class Magistrate.

- ii) In case of Private Limited Companies, Copy of Power of Attorney issued by Competent Officer under the common seal of the Company, authorizing the person to sign the bid/ execute contracts/agreements etc duly notarized
- iii) In case of Public Limited Companies and Statutory Corporations, Board resolution authorizing the Executive to sign the bid/ contracts/agreements and affix common seal thereon in accordance with the provisions of Article of Association of the Company OR Power of Attorney issued by Competent Officer under the common seal of the Company authorizing the person to sign the bid/ execute contracts/agreements etc.
- iv) In case of Joint Venture/Consortium, Satisfactory evidence of authority of the person signing on behalf of the Bidder shall be furnished with the bid.

(c) Attachment 3: Bidder's Qualifications (To be uploaded on the portal)

Documentary evidence establishing that the Bidder meets the Qualifying Requirements stipulated in the NIT/IFB including the following shall be furnished in **Attachment-3** to the bid:

(A) Legal Status of the Company

1. In case of Sole Proprietorship Concern

- i) The full name of an individual proprietor, his/her parentage, documentary proof of his/her age, permanent address and present postal address/ contact details.
- ii) A deed of declaration by the Proprietor, that no other individual or company has any share in the concern.

2. In case of Partnership Firm

- i) Certified photocopy of the Partnership Deed, with up to date amendments (if any).
- ii) Registration certificate issued by the Registrar of Companies concerned, if any.
- iii) In case of change in the constitution of the firm due to retirement or death or addition of an incoming partner, photocopy of Deed of Dissolution, fresh registration Certificate and the fresh / extant Partnership Deed, as applicable.

3. In case of Private Limited Companies

- i) Certified to be true and up to date amended copy of Memorandum and Articles of Association of the Company.
- ii) Certificate of incorporation of the Company.

4. In case of Public Limited Companies and Statutory Corporations.

- i) Certified to be true copy of Memorandum and Articles of Association of the Company and/or the relevant Statute/Act.
- ii) Certificate of Incorporation of the company-In case of public limited Co. only.
- iii) Certificate of Commencement of Business-In case of public limited Co. only.

5. In case of Consortium/ Joint Venture bid

- i) The information listed in Qualifying Requirements in NIT/IFB/Tender Enquiry shall be submitted for each Joint Venture or Consortium partner.
- ii) The bid, shall be signed so as to be legally binding on all partners;
- iii) One of the partners shall be nominated as being in charge and shall be designated as leader; this authorization shall be evidenced by submitting with bid, a power of attorney signed by legally authorized signatories of all the partners;
- iv) An authorization authorizing the leader to incur liabilities and receive instructions for and on behalf of any and all partners of the Joint Venture or Consortium and the entire execution of the Contract including payment to be done exclusively with the leader;
- v) All partners of the Joint Venture shall be liable jointly and severally for the execution of the Contract in accordance with the Contract terms, and a relevant statement to this effect shall be included in the authorization mentioned under (iii) above as well as in the Bid Form and in the Agreement (in the case of a successful bid);
- vi) Joint Venture / Consortium Agreement entered into by the Joint Venture or Consortium partners shall be submitted with the bid. The Joint Venture or consortium Agreement shall clearly specify the work and responsibility of each partner or a notarised copy.
- vii) A copy of the Partnership Deed/Memorandum & Articles of Association/Certificate of incorporation as the case may be of the prime bidder and all the Partners of Joint Venture / Consortium shall also be enclosed.

(B) Financial Status

In support of meeting the Financial criteria specified in the Qualifying Requirements stipulated in the NIT/IFB/Tender Enquiry, the following documents shall be furnished with the bid:

- 1. Audited Financial results of preceding 3 financial years or Balance Sheet and Profit & Loss account statement of preceding 3 financial years duly certified by a Chartered Accountant.
- 2. Solvency Certificate from Bankers, issued not earlier than fifteen (15) days prior to the scheduled date of bid opening of the Package, if asked for in the NIT / Tender Enquiry.

(C) Proof of Execution of Works

In support of meeting the work execution requirements specified in the Qualifying Requirements stipulated in the NIT/IFB/Tender enquiry, the following documents shall be furnished with the bid

- i). Copies of the Letter of Award/Purchase orders/Contracts
- ii). Certificate (s) from the Client(s) for successful execution of the assignment with value and period of execution.

(D) Other requirements specified in the Qualifying Requirements.

In support of meeting the other requirements specified in the Qualifying Requirements stipulated in the NIT/IFB/Tender enquiry, the documents specified in the SCC shall be furnished with the bid.

The documentary evidence of the proposed sub-contractor's qualifications against the sub qualifying requirements if so specified in the bidding documents shall also be furnished in Attachment - 4.- See Sub-Clause (d) below.

Notwithstanding anything stated above, the Employer reserves the right to undertake a physical assessment of the capacity and capabilities including financial capacity and capability of the Bidder / his Collaborator(s) / Associate(s) / Subsidiary(ies) / Group Company(ies) to perform the Contract, should the circumstances warrant such assessment in the overall interest of the Employer.

The physical assessment shall include but not be limited to the assessment of the office/facilities/banker's/reference works by the Employer. A negative determination of such assessment of capacity and capabilities may result in the rejection of the Bid.

The above right to undertake the physical assessment shall be applicable for the qualifying requirements stipulated in the bidding documents.

d) **Attachment 4: Subcontractors Proposed by the Bidder, if applicable: (Not Applicable)**

The Bidder shall furnish the names of the agencies for each sub-contract(s), if applicable, alongwith the broad scope of work for each of the sub-contracting works proposed for subcontracting.

e) **Attachment 5: Equipment/ Machinery deployment Schedule: As applicable (To be uploaded on the portal)**

The Bidder shall indicate the quantum and schedule of the equipment/ machinery/ lab equipment etc. he proposes to deploy for the Work under this bid.

f) **Attachment 6: General Declaration of Bidder (To be uploaded on the portal)**

Declaration that the Bidder has carefully examined the Bidding Documents in totality and his authorized personnel have visited the site for assessment of all factors for the purposes of bidding.

g) **Attachment 7: Electronic Fund Transfer (EFT) Authorization Form (To be given offline in physical form and copy to be uploaded on the portal)**

Authorization Form for release of payments through Electronic Fund Transfer System.

h) **Attachment 8: Details of PF, ESI, PAN and GST Regn. (To be uploaded on the portal)**

The details of registration for PF, ESI, PAN and GST Regn. to be furnished.

In case GSTIN details are not provided, it shall be considered that the bidder is an unregistered dealer.

(i) **Attachment 9: Declaration Regarding GST (To be uploaded on the portal)**

The bidder shall necessarily mention the GST applicable in the Schedule of Quantities. Further, the services covered under RCM must be declared in Attachment 9 of Forms & Procedures (Section VII) and specify the GST applicable. However, levies, royalty, fees etc., if any, shall be included in the price.

(j) **Attachment 10: Technical Compliance (To be uploaded on the portal)**

The bidder shall essentially confirm compliance to the scope of work and other technical requirements specified in the Technical Specifications and Bid Drawings (Section V)

(k) **Attachment 11 Integrity Pact, if applicable (To be uploaded on the portal)**

Bidders are required to unconditionally accept the "Integrity Pact (IP)" (executed on plain paper) as per Attachment-12 to the Bidding Documents which has been pre-signed by the Employer, and upload the same on portal duly signed on all pages by the bidder's authorized signatory and where the joint ventures(s)/ Consortium are permitted to participate in the bid, the signing of Integrity Pact (IP) by all Joint Venture(s) Partner(s) / Consortium members is mandatory.

Bidder may also send original copy of the Integrity Pact duly signed and stamped at the address mentioned in the NIT before the stipulated bid submission closing date and time.

Bidder's failure to comply with the aforesaid requirement regarding submission of "Integrity Pact (IP)" may lead to rejection of bid and in such case the online bid shall not be opened. It may also be noted that subsequent to Employer's evaluation of Bids, resulting into award of the Contract to a particular Bidder, the integrity Pact so submitted shall form an integral part of the Contract.

****Applicable unless otherwise mentioned in NIT / SCC.**

(l) **Attachment No 12: Declaration regarding Nil Deviation:**

Bidders are required to unconditionally accept & furnish the undertaking for Nil Deviations as per Attachment-12 to the Bidding Documents and upload the same on portal.

Bidder's failure to comply with the aforesaid requirement regarding the submission of Undertaking may lead to rejection of bid.

(m) **Attachment No 13: Declaration regarding compliance of Qualifying Requirements: Undertaking for Compliance of Important Conditions (To be uploaded on the portal)**

Bidders are required to unconditionally accept & furnish the undertaking for compliance of Qualifying Requirements as per Attachment-13 to the Bidding Documents and upload the same on portal.

Bidder's failure to comply with the aforesaid requirement regarding the submission of Undertaking may lead to rejection of bid.

(n) **Attachment No 14: Declaration regarding Debarment from business dealings Policy:**

Bidders are required to unconditionally accept & furnish the undertaking for compliance of Debarment from business dealings Policy as per Attachment-14 to the Bidding Documents and upload the same on portal.

Bidder's failure to comply with the aforesaid requirement regarding the submission of Undertaking may lead to rejection of bid.

(o) **Attachment No 15: Declaration regarding Fraud Prevention Policy:**

Bidders are required to unconditionally accept & furnish the undertaking for compliance of Fraud Prevention Policy as per Attachment-15 to the Bidding Documents and upload the same on portal.

Bidder's failure to comply with the aforesaid requirement regarding the submission of Undertaking may lead to rejection of bid.

(p) **Attachment No 16: Declaration regarding acceptance of NTPC - JPL Safety Rules:**

Bidders are required to unconditionally accept & furnish the undertaking for compliance of NTPC - JPL Safety Rules as per Attachment-16 to the Bidding Documents and upload the same on portal.

Bidder's failure to comply with the aforesaid requirement regarding the submission of Undertaking may lead to rejection of bid.

(q) **Attachment No 17: Declaration regarding Compliance to "Conflict of Interest" provisions:**

Bidders are required to unconditionally accept & furnish the undertaking for Compliance to "Conflict of Interest" provisions as per Attachment-17 to the Bidding Documents and upload the same on portal.

Bidder's failure to comply with the aforesaid requirement regarding the submission of Undertaking may lead to rejection of bid.

Note: Techno-Commercial Bid should not contain any price content entry.

11.3.2 PRICE BID

The bidder has to quote the prices as specified in the BOQ. Bidder has to mandatorily quote GST (%) as declared in the Attachment-9.

- 11.4** Filling the information in the attachments with answers like "shall be given later" "or" "shall be mutually discussed and finalized" or "information already submitted at the time of enlistment" etc. shall not be accepted. Even if the information required in the attachments has been given in response to any other recent invitation for bids of the Employer or in some other reference, it is mandatory for the Bidder to give the information along with his bid as asked for. Non-compliance with the above or leaving the attachment(s) blank may lead to the rejection of the bid. The information furnished by the Bidder should be consistent, correct and true. The Employer reserves the right to verify the information given and if found incorrect, the bid may be rejected.
In case the bidder does not provide applicable GST (%), the quoted price shall be considered as inclusive of GST,

- 11.5 A conditional Price Bid shall run the risk of rejection.**

- 11.6** Price Bid should not contain any matter in respect of Technical and / or Commercial aspects other than the details specifically sought in the Price Bid.

12.0 BID PRICES AND PRICE BASIS

- 12.1** Unless otherwise specified in the Technical Specifications, Bidders shall quote for the entire facilities on a "single responsibility" basis such that the total bid price covers all the Contractor's obligations mentioned in or to be reasonably inferred from the bidding. Bidders shall give a breakdown of the prices in the manner and detail called for in the Schedule of Quantities (BOQ).

- 12.2** The currency of the bid and currency of payment shall be in Indian Rupees until unless specified otherwise in the SCC.

- 12.3** Bidders are advised to price their bids in such a manner that the component for 'Amount linked to Safety Aspects/ compliance to Safety Rules' should not be less than minimum 5% of the total value for works portion of Contract specified in SCC.

The successful bidder if awarded the contract shall take sufficient care in moving the plants equipment and materials from one place to another so that they do not cause any damage to any person or the property of employer or 3rd party including overhead and underground cables/pipelines. In the event of such damage including eventual loss of operation and operation of the plant or services in any plant or establishment as estimated by the employer or adjusted by third party shall be borne by the Contractor.

- 12.4** The rates/amount quoted in the Bill of Quantity (BOQ) shall be exclusive of all GST and all other taxes & duties as per GCC Clause 26.0. However, levies, royalty, fees, labor cess etc., if any, shall be included in the price as per GCC Clause 26.0. In case bidder does not mention GST in GST column provision, other relevant Charges in this regard provision in tender document shall be applicable.

In the Bill of Quantity (BOQ) provided, the bidder shall quote the prices, taxes etc. as asked for in the BOQ.

- 12.5** The Bidder shall be responsible for payment of any tax levied on the transfer of property and goods involved in the '**Composite / Works Contract**' in accordance with the applicable GST Law or applicable Act or Notification(s) by the State or Central Government or other authorities and rules made there under including amendments, if any. The liability on account of such tax as per the rates of tax prevailing as on seven (7) days prior to the date of bid opening is to the account of the Contractor. In case of any variation in the rates of the tax after the date seven (7) days prior to date of bid opening, the same shall be paid/ reimbursed to the Contractor subject to submission of documentary evidence and proof of having made the payment at the revised rate.

- 12.6** The bidder shall necessarily declare as part of his bid, the scheme which the bidder has adopted for calculation of Goods & Service Tax in Attachment 9 of Forms & Procedures (Section VII). In case the bidder has opted for Works Contract/Composite Scheme for payment of Goods & Service Tax, the estimated value of Owner Issue Materials, if any, to be considered for working out GST liability as part of the Bid Price as indicated in SCC. The bidder shall not be allowed to change the declared method of calculation GST subsequently. In case of any variation between the estimated value and actual value of Owner Issue Material during the execution of the contract, an equitable adjustment of the contract price

shall be made by addition/deletion of the contract price in case of Works Contract /Composite Scheme of Goods & Service Tax.

- 12.7** In case 'Amount linked to Safety Aspects / compliance to Safety Rules' is less than aforesaid minimum percentage specified of the total value for works portion of Contract (i.e. Amount of works/services other than the amount linked to safety Aspects/Compliance to safety rules), the amount by which it is lower shall be retained proportionately from the other components of the Contract price while releasing payments of each RA bill. No interest shall be payable on the amounts linked to Safety Aspects / Compliance to Safety Rules including aforesaid retained amount. The amounts linked to Safety Aspects / Compliance to Safety Rules including aforesaid retained amount shall be payable in part or full based on safety compliance duly certified by EIC and Safety-in-charge on quarterly basis.

13.0 BID VALIDITY

- 13.1** The Bidder shall keep his bid valid for a period of **120 days from the date of opening of the techno-commercial bid, unless otherwise specified in the SCC**, during which period the Bidder agrees not to vary, alter or revoke his bid either in whole or in part.
- 13.2** In exceptional circumstances, prior to the expiry of the original bid validity period, the Employer may request the Bidders to extend the period of validity for a specified additional period. The request and the responses thereto shall be made in writing. A Bidder agreeing to the request will not be permitted to modify his bid, but will be required to extend the validity of his bid security for the period of the extension.

14.0 BID SECURITY / GUARANTEE / EARNEST MONEY

- 14.1** The Bidder shall furnish, as part of its Bid, a Bid Security be in the form of a bank guarantee / EFT only in a separate sealed envelope for the amount and currency as stipulated in the NOTICE INVITING TENDER (NIT).
- 14.2** The format of the Bank Guarantee shall be in accordance with the form of bank guarantee towards bid security included in the Bidding Documents (Section-VII). Bid Security shall remain valid for a period of forty-five (45) days beyond the original Bid validity period and beyond any extension of bid validity subsequently requested under relevant clause of ITB.
- 14.3** Wherever Bids under Joint Venture route are permitted as per the Qualifying Requirements in the Bidding Documents, the Bid Security by the Joint Venture must be on behalf of all the partners of the Joint Venture.
- 14.4** Any bid not accompanied by an acceptable Bid Security in a separate sealed envelope shall be rejected by the Employer as being non-responsive and shall not be opened.
- 14.5** BG against Bid Security issued by a Bank outside India –Not Applicable.
- 14.6** Subject to clause 14.8 below, the Bid Security of the Bidder whose Techno-Commercial Bid has not been found acceptable, shall be returned along with letter communicating rejection of Techno-Commercial Bid. The Bid Security of the bidders who are unsuccessful after opening of Price Bids shall be returned expeditiously.
- 14.7** The Bid Security of the successful Bidder to whom the contract is awarded will be returned when the said Bidder has signed the Contract Agreement and has furnished the required Performance Securities pursuant to relevant clauses of ITB.

14.8 The Bid Security may be forfeited

- a) If the Bidder withdraws or varies its Bid during the period of Bid validity;
- b) If the Bidder does not accept the correction of its Bid Price pursuant to ITB Sub-Clause for Arithmetical Correction.
- c) If the Bidder refuses to withdraw, without any cost to the Employer, any deviation, variation, additional condition or any other mention anywhere in the bid (Price bid in case of Two Stage Bid), contrary to the provisions of bidding documents;
- d) In the case of a successful Bidder, if the Bidder fails within the specified time limit to furnish the required Contract Performance Guarantee/Security Deposit in accordance with relevant clause of ITB.
- e) If the bidder/his representatives commits any fraud while competing for this contract pursuant to Fraud Prevention Policy of NTPC.
- (f) In case the Bidder/Contractor is disqualified from bidding process in terms of Section 3 and 4 of Integrity Pact (IF APPLICABLE).

14.9 CONFIRMATION OF BGS THROUGH STRUCTURED FINANCIAL MESSAGING SYSTEM SFMS)/SWIFT

While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below:

- (i) **Account Name: Jhabua Power Ltd.**
- (ii) **Bank Name: AXIS BANK LIMITED**
- (iii) **Account No. : 128010200029698**
- (iv) **Branch: JABALPUR**
- (v) **Bank Address: Axis Bank Ltd, Ground Floor, Panchratan Building , Model Road , Jabalpur, MP - 482 002**
- (vi) **IFSC Code: UTIB0000128**
- (vii) **MICR Code: 482211001**

BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI.

14.10 No interest will be payable by the Employer on the said amount covered under Earnest Money Deposit.**14.11** In case of Bidders opting for Bank Guarantee as Bid Security but unable to submit the Original Bank Guarantee in physical form at the tender opening location, before the deadline for submission of bids, following shall also be considered acceptable, subject to para 14.12 below

- (i) The issuing bank shall intimate through their own official e-mail id to concerned C&M department with a copy to Bidder regarding issuance / extension of Bank Guarantee (BG) along with following documents, before the deadline of submission of bids: -
 - a) The scanned copy of the BG.
 - b) SFMS / SWIFT message acknowledgement copy sent to JPL / Employer's banker stating the date of sending.
 - c) An undertaking from the issuing Bank strictly as per format enclosed at Annexure-III to SCC.

SFMS / SWIFT message must be sent to the JPL/Employer's bank, details of which are mentioned in Bidding documents.

(ii) Bidders shall also be required to upload the scanned copy of the BG on online portal

- 14.12** The bidder shall be required to submit all the documents in the manner as specified at para 14.11 above, to reach JPL/Employer before the deadline for submission of bids, failing which its bids shall be rejected as being non-responsive and not opened.

15.0 WORK SCHEDULE

The entire Work covered under the contract of this bid shall be completed within the time specified in the **SCC and further elaborated in the Technical Specifications**. The Work shall be performed in time and to achieve the targets, the Contractor shall have to plan adequate mobilization of all resources.

PART D - SUBMISSION OF BID

16.0 SEALING AND MARKING OF BID

Bid shall be submitted through online mode in the manner specified elsewhere in bidding document. No Manual/ Hard Copy of the Bid shall be acceptable.

- 16.1** Documents to be submitted in On Line Form (as brought out at ITB clause 11.3.1) shall be sealed and marked in the following manner:

- (i) The Earnest Money Deposit (in case paid in modes other than on-line payment) furnished in accordance with ITB Clause 14 shall be sealed in a separate envelope duly marking the envelope as **"ATTACHMENT-1: EARNEST MONEY DEPOSIT"**.
- (ii) The **Power of Attorney** furnished in accordance with ITB Clause 11.3.1(b) shall be sealed in a separate envelope duly marking the envelope as **"ATTACHMENT-2: POWER OF ATTORNEY"**.
- (iii) The **Deed of Joint Undertaking (if applicable)** as per relevant attachment shall be sealed in a separate envelope duly marking the envelope as **"DEED OF JOINT UNDERTAKING"**
- (iv) The **Joint Venture/ Consortium Agreement (if applicable)** as per relevant attachment shall be sealed in a separate envelope duly marking the envelope as **"JOINT VENTURE / CONSORTIUM AGREEMENT"**
- (v) The **'Integrity Pact' (if applicable)** as per **ATTACHMENT-11** duly signed by the signatory authorized to sign the bid, shall be sealed in a separate envelope entitled **"ATTACHMENT-11: INTEGRITYPACT"**.

The envelopes shall then be sealed in **an Outer Envelope**.

- 16.2** The inner and outer envelopes shall:

- (a) Be addressed to the Employer at the address given in the NIT/Tender Enquiry/SCC, and
- (b) bear the Package name indicated in the NIT/Tender Enquiry, the Invitation for Bids number indicated in the NIT/Tender Enquiry, and the statement "DO NOT OPEN BEFORE [date]," to be completed with the time and date specified in the NIT/Tender Enquiry, pursuant to **ITB clause 16**.

- 16.3** The inner envelopes shall also indicate the name and address of the Bidder.

16.4 If the outer envelope is not sealed and marked as required by **ITB Sub-Clause 16.2** above, the Employer will assume no responsibility for its misplacement.

17.0 BID SUBMISSION - Bidders are requested to submit offer / proposal as under.

(A) TECHNO-COMMERCIAL BID

(I) Off-line Bid (Physical Bid)

Envelope marked as 'EMD/Bid Security'

(a) Bid Form 1: EMD form

(b) Attachment 1: Earnest Money
Deposit

(c) Attachment 7: Electronic Fund
Transfer (EFT) Form

(d) Attachment 12: Integrity Pact (if
applicable)

Any other document asked for in the SCC.

(II) On-line Bid

Upload the following documents under Technical Cover/Envelope (as applicable)

- a) Attachment 1: Earnest Money Deposit (scanned copy).
- b) Attachment 2: Authority to sign the bid (scanned copy).
- c) Attachment 3: Bidders Qualification Documents
- d) Attachment 4: Sub-contractor proposed by Bidder.
- e) Attachment 5: Equipment/Machinery Deployment Schedule
- f) Attachment 6: General Declaration
- g) Attachment 7: Electronic Fund Transfer (EFT) Form
- h) Attachment 8: Details along with Copy of PF and ESI registration, PAN and GSTIN. In case GSTIN is not specified, it shall be considered that the bidder is an unregistered dealer.
- i) Attachment 9: Declaration Regarding GST.
- j) Attachment 10: Technical details & data sheets, drawings, compliance to scope of work etc.
- k) Attachment 11: Declaration of Local Content
- l) Attachment 12: Integrity Pact
- m) Attachment 12A: Details of Foreign Principals of Indian Bidders
- n) Attachment 13: Undertaking for Compliance of Important Conditions of Tender

Any other document asked for in the SCC/Technical specifications also to be uploaded in Technical Cover/Envelope.

(B) PRICE BID

The bidder has to upload the BOQ duly filled on CPP Portal.

18.0 DEADLINE FOR SUBMISSION OF BID

18.1 Bid must be received by the Employer at the address referred in the NIT/Tender Enquiry/SCC, no later than the time and date stated in the NIT/Tender Enquiry or mentioned on CPP portal.

18.2 The Employer may, in exceptional circumstances and at his discretion, extend the deadline for submission of bids by issuing an amendment in accordance with **ITB Clause 8.0** above, in which

case all rights and obligations of the Employer and the Bidders previously subject to the original deadline shall thereafter be subject to the deadline as extended.

19.0 LATE EARNEST MONEY DEPOSIT AND INTEGRITY PACT

Any Bid Security (or extension thereof) and/or Integrity Pact (If applicable); bid received by the Employer after the bid submission deadline prescribed by the Employer, pursuant to **ITB Clause 18**, will be rejected and returned unopened to the Bidder.

20.0 MODIFICATION, SUBSTITUTION AND WITHDRAWAL OF BID - Bidders are requested to submit the bids on-line on CPP Portal.

20.0 Bid Modification and Withdrawal: The Bidder may modify or withdraw its bid after submission prior to the deadline prescribed for bid submission.

20.1 No bid may be withdrawn / modified in the interval between the bid submission deadline and the expiration of the bid validity period specified in clause 13.0 of ITB.

Withdrawal of a bid during this interval may result in the Bidder's forfeiture of its Earnest Money Deposit, pursuant to ITB Sub-Clause 14.8(a).

PART E - BID OPENING AND EVALUATION

21.0 BID OPENING

The bids will be opened at the time, date and location notified in the NIT/SCC of Tender Enquiry.

22.0 CLARIFICATION OF BIDS

Bidder's attention is drawn that during the period, the bids are under consideration, the Bidder is advised to refrain from contacting by any means, the Employer and/or his employees/representatives on matters related to the bids under consideration and that if necessary, the Employer will obtain clarifications from the Bidder in writing. Any effort by a Bidder to influence the Employer's processing of bids or award decisions will result in the rejection of the Bidder's bid.

During the bid evaluation the Employer may, at its discretion, ask the Bidder for a clarification of its bid including documentary evidence pertaining to only the Work Orders/Purchase Orders/Letter of Awards/Contract Agreements declared in the bid for the purpose of meeting Qualifying Requirement specified in NIT/Bidding Documents. The request for clarification and the response shall be in writing and no change in the price or substance of the bid including substitution of reference Work Orders/Purchase Orders/Letter of Awards/Contract Agreements in the bid by new/additional Work Orders/Purchase Orders/Letter of Awards/Contract Agreements for conforming to Qualifying Requirement shall be sought, offered or permitted.

23.0 EVALUATION AND COMPARISON OF BIDS

23.1 BID EVALUATION

23.1.1 The Employer will initially determine whether each bid is of acceptable quality, is generally complete and is substantially responsive to the Bidding Documents. For purposes of this determination, a substantially responsive bid is one that conforms to all the terms, conditions and specifications of the Bidding Documents without material deviations, objections, conditionalities or reservations. A material deviation, objection, conditionality or reservation is one

- (i) that affects in any substantial way the scope, quality or performance of the contract; or
- (ii) (ii) that limits in any substantial way, inconsistent with the Bidding Documents, the Employer's rights or the Bidder's obligations under the contract; or
- (iii) whose rectification would unfairly affect the competitive position of other Bidders who are presenting substantially responsive bids.

23.1.2 The Employer's determination of a bid's responsiveness is to be based on the contents of the bid itself without recourse to extrinsic evidence. If a bid is not substantially responsive, it will be rejected by the Employer, and may not subsequently be made responsive by the Bidder by correction of the non-conformity.

23.2 The evaluation shall be based on the evaluated cost of fulfilling the contract in compliance with all commercial, contractual and technical obligations under this Bidding Document

23.3 Abnormally High or Low Rated Items

If the rates/prices quoted by the successful Bidder for certain items of the Schedule of quantities are found to be abnormally high or low in relation to the Employer's estimate of the cost of work to be performed under the Contract, then Employer may require the Bidder to produce detailed rate/price analysis for such items of the Schedule of Quantities, to demonstrate the internal consistency of these rates/prices with the construction methods and schedule proposed. After evaluation of the rate/price analysis, Employer may require that the amount of the Security Deposit be increased at the expense of the successful Bidder to a level sufficient to protect Employer against financial loss in the event of default by the Contractor under the Contract, to carry out such low rated items of work, subject to the provisions of **GCC Sub-Clause 45.2** titled 'Permissible deviation limit for variation in Contract items'. Further, the Employer will require the Contractor to provide a suitable undertaking to execute the item(s) of Work to the extent of quantities up to the variation limits.

23.4 Post-Qualification

23.4.1 The Employer will determine to its satisfaction whether the Bidder is qualified to satisfactorily perform the contract, in terms of the Qualifying Requirements (QR) stipulated in NIT/IFB/Tender Enquiry and other criteria detailed elsewhere in the bidding documents.

23.4.2 The determination will take into account the Bidder's capabilities, based upon examination of the documentary evidence of the Bidder's qualifications submitted by the Bidder in the **Attachments – 3 and 4** as well as such other information as the Employer deems necessary and appropriate. The Employer reserves the right to assess the capabilities and capacity of the Bidder to perform the contract, should the circumstances warrant such assessment in the overall interest of the Employer.

23.4.3 An affirmative determination will be a prerequisite for award of the contract to the Bidder. A negative determination will result in rejection of the Bidder's bid.

23.4.4 The capabilities of the vendors and subcontractors, proposed in **Attachment - 4**, to be used **by the highest evaluated Bidder** score, will also be evaluated for acceptability. Their participation should be confirmed with a letter of intent between the parties, as needed. Should a vendor or subcontractor be determined to be unacceptable, the bid will not be rejected, but the Bidder will be required to substitute an acceptable vendor or subcontractor without any change in the bid price, prior to award.

PART F - AWARD OF CONTRACT

24.0 AWARD CRITERIA

Subject to **ITB Clause 26.0**, the Employer will award the Contract to the Bidder whose bid has been determined to be substantially responsive to the Bidding Documents and whose bid has been adjudged as the highest evaluated bidding score, provided that such Bidder has been determined to be qualified to perform the contract satisfactorily.

No contract shall be awarded to a bidder against whom a Debarment Order has been issued as per Employer's Policy for Debarment from Business Dealings.

25.0 EMPLOYER'S RIGHT TO ACCEPT OR REJECT ANY OR ALL BIDS

Notwithstanding **ITB Clause 24.0**, the Employer reserves the right to accept, (whole or in part) and the Bidder shall be bound to perform the same at his quoted rate, or reject any bid for any reasons including national defense and security consideration and to annul the bidding process and to reject all bids at any time prior to award of contract without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for the Employer's action. Decision of Employer shall be final and binding in this regard.

26.0 LETTER OF AWARD

26.1 Prior to the expiration of the bid validity prescribed by the Employer, the Employer will issue a Letter of Award (LOA) / Service / Purchase Order to the successful Bidder containing reference of the documents which form the Contract, Scope of Work, Contract Price, period of completion of the Works, terms of payment, price adjustment, and other important aspects in consideration of the execution and completion of the Works and the remedying of any defects therein by the Contractor as prescribed by the Contract.

26.2 This Letter of Award / Purchase Order will constitute the formation of the Contract.

26.3 Prior to the expiration of the bid validity prescribed by the Employer, the Employer can issue a Brief Letter of Award (LOA) to the successful Bidder containing reference of the tender, offer and Contract Price. This brief letter of award shall constitute the formation of the Contract.

27.0 SIGNING OF CONTRACT AGREEMENT

27.1 The Successful Bidder / Contractor shall enter into a Contract Agreement with the Employer within thirty (30) days from the date of Letter of Award or within such other time, as may be desired by the Employer. The Contract Agreement shall be executed on a non-judicial Stamp Paper of appropriate value.

27.2 Manner of Execution of Contract Agreement

- i) Unless and until a formal contract is prepared and executed, the Letter of Award / Purchase Order read in conjunction with the Bidding Documents will constitute a binding contract.
- ii) The Contract Agreement shall be prepared by the Employer and signed at the office of the Employer. The Contract Agreement will be signed in three originals and the Contractor shall be provided with one signed original and the other two originals will be retained by the Employer.
- iii) The Contractor shall provide free of cost to the Employer all the engineering data, drawings and descriptive materials submitted as a part of his bid, in at least three (3) copies to form an integral part of the Contract Agreement within twenty-eight (28) days after issuing of Letter of Award / Purchase Order. The Contractor shall further

provide for signing of the Contract Agreement as per prescribed proforma enclosed in the Bidding Documents, appropriate Power of Attorney and the requisite stamp papers. All the other documents required for the preparation of the Contract Agreement shall be provided by the Employer.

- iv) Unless and until the Contract Agreement is signed as above, no payments under the Contract as per GCC Clauses entitled 'Payment On Account / Progressive Interim Payments' and 'Time Limit for Submission & Payment of Final Bill' shall be released to the Contractor by the Employer nor any materials shall be issued to the Contractor as stipulated in the Special Conditions of Contract or otherwise agreed to be issued by the Employer.
- v) **Subsequent to signing of the Contract Agreement, the Contractor at his own cost shall provide to the Employer with at least three (3) true copies of Contract Agreement within twenty-eight (28) days of its signing. The Contractor will also provide one (1) electronic version of the Contract Agreement to the Employer within thirty (30) days of its signing.**

28.0 INELIGIBILITY FOR FUTURE TENDERS

28.1 Notwithstanding the provisions regarding forfeiture of Bid Security specified in **ITB Sub- Clause 14.7**, if a Bidder after having been issued the Letter of Award/ Purchase Order, either does not accept the same or does not sign the Contract Agreement or does not submit an acceptable Initial Security Deposit/Entire Security in line with the provisions of the Contract and which results in tender being annulled then such bidder shall be treated ineligible for participation in re-tendering of this particular package. Further, such bidder/contractor shall also be dealt as per the provisions of policy for Debarment from Business Dealings.

29.0 ADHERENCE TO FRAUD PREVENTION POLICY

The Bidder/Contractor along with its associate / collaborators / sub-contractors / sub-vendors / consultants / service providers shall strictly adhere to the Fraud Prevention Policy of Employer displayed on website <http://www.ntpctender.ntpc.co.in> The Bidder/Contractor shall immediately apprise the Employer about any fraud or suspected fraud as soon as it comes to their notice.

A certificate to this effect shall be furnished by the bidder along with his bid by accepting the undertaking as per Attachment-15.

If in terms of above policy, it is established that the bidder/his representatives have committed any fraud while competing for this contract then the Employer shall be entitled to disqualify the Bidder(s)/ Contractor(s) from the bidding process and forfeit the Earnest Money Deposit.

In addition to the above, if the Bidder has committed a fraud such as to put his reliability or credibility into question, the Employer shall be entitled to exclude including blacklist and put the Bidder on holiday for any future e-tenders /contracts award process.

30.0 DECLARATION ON DEBARMENT FROM BUSINESS DEALINGS POLICY

The employer has in place a Policy for Debarment from Business Dealings displayed on the website www.ntpc.co.in / www.ntpctender.ntpc.co.in. Business dealings may be withheld or banned with the Bidder/Contractor on account of any default by the contractor under GCC clause 47.3.1 or any of the grounds and following the procedures as detailed in the said Policy for Debarment from Business Dealings.

Declaration on Policy for Debarment from Business Dealings is to be given by accepting the undertaking as per Attachment-14

31.0 BENEFITS TO MSEs - Not Applicable

32.0 Deleted

33.0 Deleted

34.0 Corrupt or Fraudulent Practices

Employer requires that Bidders, Contractors and Suppliers observe the highest standard of ethics during the procurement/tendering and execution of the contracts. In pursuance of this policy, Employer:

a) defines, for the purposes of this provision, the terms set forth below as follows:

i) "Corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement/tendering process or in contract execution; and

ii) "fraudulent practice" means a misrepresentation of facts in order to influence a procurement/tendering process or the execution of a contract to the detriment of the Employer, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial noncompetitive levels and to deprive the Employer of the benefits of free and open competition;

b) will reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question;

c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing a contract of the Employer.

No.F.7/10/2021-PPD (1)
Government of India
Ministry of Finance
Department of Expenditure
Procurement Policy Division

264-C, North Block, New Delhi.
23.02.2023.

Order (Public Procurement No. 4)

Subject: Restrictions under Rule 144(xi) of the General Financial Rules (GFRs), 2017.

Attention is invited to Order (Public Procurement No. 1) issued vide F.6/18/2019-PPD dated 23.07.2020, Order (Public Procurement No. 2) issued vide F.6/18/2019-PPD dated 23.07.2020, Order (Public Procurement No. 3) issued vide F.6/18/2019-PPD dated 24.07.2020, Office Memorandum (OM) No. F.18/37/2020-PPD dated 08.02.2021, OM No. F.12/1/2021-PPD(Pt.) dated 02.03.2021 and OM No. F.7/10/2021-PPD dated 08.06.2021. In this regard, the following is hereby ordered under Rule 144(xi) (as amended vide OM No. F.7/10/2021-PPD dated 23.02.2023) on the grounds stated therein, in supersession to all of the above mentioned Orders/ clarifications:

Requirement of registration:

2. Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority, specified in **Annexure I**.

3. Any bidder (including an Indian bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority, specified in **Annexure I**.

4. The requirement of registration for cases covered by paragraph 2 above has been applicable since 23.07.2020. The requirement of registration for bidders covered by paragraph 3 above will be applicable for all procurements where tenders are issued/ published after 01.04.2023.

5. In tenders issued after 23.07.2020 or 01.04.2023, as the case may be, the provisions of requirement of registration of bidders and of other relevant provisions of this Order shall be incorporated in the tender conditions.

Applicability:

6. Apart from Ministries/ Departments, attached and subordinate bodies, notwithstanding anything contained in Rule 1 of the GFRs 2017, the Order shall also be applicable

- a) to all Autonomous Bodies;
- b) to all public sector banks and public sector financial institutions;
- c) to all Central Public Sector Enterprises;
- d) to all procurement in Public Private Partnership projects receiving financial support from the Government or public sector enterprises/ undertakings; and
- e) Union Territories, National Capital Territory of Delhi and all agencies/ undertakings thereof.

7. This order will not be applicable for cases falling under **Annexure II**.

Definitions:

8. "*Bidder*" for the purpose of the Order (including the term 'tenderer', 'consultant' 'vendor' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process.

9. "*Tender*" for the purpose of the Order will include other forms of procurement, except where the context requires otherwise.

10. "*Transfer of Technology*" means dissemination and transfer of all forms of commercially usable knowledge such as transfer of know-how, skills, technical expertise, designs, processes and procedures, trade secrets, which enables the acquirer of such technology to perform activities using the transferred technology independently. (Matters of interpretation of this term shall be referred to the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, and the interpretation of the Committee shall be final.)

11. "*Specified Transfer of Technology*" means a transfer of technology in the sectors and/ or technologies, specified in paragraph 15, occurring on or after 23.07.2020.

12. "*Bidder (or entity) from a country which shares a land border with India*" for the purpose of the Order means

- (a) An entity incorporated, established or registered in such a country; or
- (b) A subsidiary of an entity incorporated, established or registered in such a country; or
- (c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
- (d) An entity whose beneficial owner is situated in such a country; or
- (e) An Indian (or other) agent of such an entity; or
- (f) A natural person who is a citizen of such a country; or

- (g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

13. *Beneficial owner* for the purposes of Para 12 (d) will be as under:

(i) In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other means.

Explanation:-

- a. "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five per cent of shares or capital or profits of the company;
- b. "Control" shall include the right to appoint the majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

(ii) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

(iii) In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

(iv) Where no natural person is identified under (i) or (ii) or (iii) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

(v) In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

14. "*Agent*" for the purpose of the Order is a person employed to do any act for another, or to represent another in dealings with third persons.

[Note:

- i. A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent for the purpose of this Order.
- ii. However, a bidder who only procures raw material, components etc. from an entity from a country which shares a land border with India and then manufactures or converts them into other goods will not be treated as an Agent.]

Sensitive Sectors/ Technologies (relevant only for the provisions on ToT arrangements):

15. (i) Certain sectors and technologies have been identified as sensitive from the national security point of view. The sectors listed in Schedule I to this Order are considered Category-I sensitive sectors. The sectors listed in Schedule II to this Order are considered Category-II sensitive sectors. The technologies listed in Schedule III are considered sensitive technologies.

(ii) For Category-I sensitive sectors, bidders with ToT arrangement in any technology with an entity from a country which shares a land border with India shall require registration.

(iii) For Category-II sensitive sectors, bidders with ToT arrangement in the sensitive technologies listed in Schedule III, with an entity from a country which shares a land border with India shall require registration.

(iv) In Category-II sensitive sectors, the Secretary (or an officer not below the rank of Joint Secretary to Government of India, so authorized by the Secretary) of the Ministry/ Department of the Government of India is empowered, after due consideration, to waive the requirement of registration for a particular item/ application or a class of items/ applications from the requirement of registration, even if included in Schedule III. The Ministry/ Department concerned shall intimate the Department for Promotion of Industry and Internal Trade (DPIIT) and National Security Council Secretariat (NSCS) of their decision to waive the requirement of registration. Ministries/ Departments of the Government of India are not required to consult the DPIIT/ NSCS before deciding and are only required to intimate the decision to DPIIT/ NSCS. If any point is raised by DPIIT/ NSCS, it should be considered in future procurements; ongoing procurement for which the waiver was granted need not be interrupted or altered.

16. Based on security considerations, a Ministry/ Department in a Category II sensitive sector or other Ministries/ Departments may recommend to DPIIT inclusion of any other technology in the list of sensitive technologies, either generally or for their Ministry/ Department.

Sub-contracting in works contracts

17. In works contracts, including turnkey contracts, contractors shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority. The definition of "contractor from a country which shares a land border with India" shall be as in paragraph 12 above. This shall not apply to sub-contracts already awarded on or before 23.07.2020.

[Note: Procurement of raw material, components, etc. does not constitute sub-contracting.]

Certificate regarding compliance

18. An undertaking shall be taken from bidders in the tender documents (**Annexure III**) that the extant guidelines for participation in the tenders (which should include conditions for implementation of this Order) have been complied with. If such certificate given by a bidder whose bid is accepted is found to be false, this would be a ground for debarment and further legal action in accordance with law.

Validity of registration

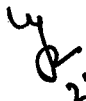
19. In respect of tenders, registration should be valid at the time of submission of bids and at the time of acceptance of bids. In respect of supply otherwise than by tender, registration should be valid at the time of placement of order. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.

Government e-Marketplace (GeM)

20. GeM shall remove non-compliant entities from GeM unless/ until they are registered in accordance with this Order.

Model Clauses/ Certificates

21. Model Clauses and Model Certificates which may be inserted in tenders/ obtained from Bidders are given at Annexure-III. While adhering to the substance of the Order, procuring entities are free to appropriately modify the wording of these clauses based on their past experience, local needs etc.


23/02/2023
(Kanwalpreet)
Director(PPD)

Tel.No. 2309 3811; email: kanwal.irss@gov.in

To

1. Secretaries of all Ministries/ Departments of Government of India for information and necessary action. They are also requested to inform these provisions to all procuring entities.
2. Secretary, Department of Public Enterprises with a request to immediately reiterate these orders in respect to public enterprises.
3. Secretary, Department of Financial Services with a request to immediately reiterate these orders in respect to public sector and public sector financial institutions.
4. Secretary DPIIT with a request to take action as provided under Annexure I.
5. Chief Secretaries/ Administrators of Union Territories/ National Capital Territory of Delhi.
6. CEO/ GeM with a request to ensure implementation of this order on GeM.

List of Category-I Sensitive sectors:

Sr.No.	Sector
(i)	Atomic Energy
(ii)	Broadcasting/ Print and Digital Media
(iii)	Defence
(iv)	Space
(v)	Telecommunications

List of Category-II Sensitive sectors:

Sr.No.	Sector
(i)	Power and Energy (including exploration/ generation/ transmission/ distribution/ pipeline)
(ii)	Banking and Finance including Insurance
(iii)	Civil Aviation
(iv)	Construction of ports and dams & river valley projects
(v)	Electronics and Microelectronics
(vi)	Meteorology and Ocean Observation
(vii)	Mining and extraction (including deep sea projects)
(viii)	Railways
(ix)	Pharmaceuticals & Medical Devices
(x)	Agriculture
(xi)	Health
(xii)	Urban Transportation

List of Sensitive Technologies:

Sr.No.	Sensitive Technologies
(i)	Additive Manufacturing (e.g. 3D Printing)
(ii)	Any equipment having electronic programmable components or autonomous systems (e.g. SCADA systems)
(iii)	Any technology used for uploading and streaming of data including broadcasting, satellite communication etc.
(iv)	Chemical Technologies
(v)	Biotechnologies including Genetic Engineering and Biological Technologies
(vi)	Information and Communication Technologies
(vii)	Software

Competent Authority and Procedure for Registration

- A. The Competent Authority for the purpose of registration under this order shall be/ continue to be the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade (DPIIT)*. [This Committee was already constituted under Order (Public Procurement) No.1].
- B. The Registration Committee shall have the following members*:
- i. An officer, not below the rank of Joint Secretary, designated for this purpose by DPIIT, who shall be the Chairman;
 - ii. Officers (ordinarily not below the rank of Joint Secretary) representing the Ministry of Home Affairs, Ministry of External Affairs, and of those Departments whose sectors are covered by applications under consideration;
 - iii. Any other officer whose presence is deemed necessary by the Chairman of the Committee.
 - iv. With effect from 01.04.2023, an officer (ordinarily not below the rank of Joint Secretary) representing the National Security Council Secretariat.
- C. DPIIT shall lay down the method of application, format etc. for such bidders as covered by the Order.
- D. On receipt of an application seeking registration from a bidder covered by Para 2 and 3 of this order, the Competent Authority shall first seek political and security clearances from the Ministry of External Affairs and Ministry of Home Affairs, as per guidelines issued from time to time. Registration shall not be given unless political and security clearance have both been received.
- E. The Ministry of External Affairs and Ministry of Home Affairs may issue guidelines for internal use regarding the procedure for scrutiny of such applications by them.
- F. The decision of the Competent Authority, to register such bidder may be for all kinds of tenders or for a specified type(s) of goods or services, and may be for a specified or unspecified duration of time, as deemed fit. The decision of the Competent Authority shall be final.
- G. Registration granted by the Competent Authority of the Government of India shall be valid not only for procurement by the Central Government and its bodies specified in para 6 of this order, but also for procurement by State Governments and their agencies/ public enterprises etc. No fresh registration at the State level shall be required.
- H. The Competent Authority is empowered to cancel the registration already granted if it determines that there is sufficient cause. Such cancellation by itself, however, will

not affect the execution of contracts already awarded. Pending cancellation, it may also suspend the registration of a bidder, and the bidder shall not be eligible to bid in any further tenders during the period of suspension.

- I. For national security reasons, the Competent Authority shall not be required to give reasons for rejection/cancellation of registration of a bidder.

[*Note:

(i) In respect of application of the Order to procurement by/ under State Governments, all functions assigned to DPIIT shall be carried out by the State Government concerned through a specific department or authority designated by it. The composition of the Registration Committee shall be as decided by the State Government. However, the requirement of political and security clearance as per para D shall remain and no registration shall be granted without such clearance.

(ii) Registration granted by State Governments shall be valid only for procurement by the State Government and its agencies/ public enterprises etc. and shall not be valid for procurement in other states or by the Government of India and their agencies/ public enterprises etc.]

Special Cases

- A. In projects which receive international funding with the approval of the Department of Economic Affairs (DEA), Ministry of Finance, the procurement guidelines applicable to the project shall normally be followed, notwithstanding anything contained in this order and without reference to the Competent Authority. Exceptions to this shall be decided in consultation with DEA.
- B. This order shall not apply to procurement by Indian missions and by offices of government agencies/ undertakings located outside India.
- C. This order will not apply to bidders (or entities) from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Updated lists of countries to which lines of credit have been extended or in which development projects are undertaken are given on the website of the Ministry of External Affairs.
- D. Procurement of spare parts and other essential service support like Annual Maintenance Contract (AMC)/ Comprehensive Maintenance Contract (CMC), including consumables for closed systems, from Original Equipment Manufacturers (OEMs) or their authorized agents, shall be exempted from the requirement of registration.

Model Clause/ Certificate/ Undertaking to be inserted in tenders etc.

[While adhering to the substance of the Order, procuring entities and GeM are free to appropriately modify the wording of the clause/ certificate based on their past experience, local needs etc.

The conditions relating to specified ToT (as shown in italics) should be incorporated only in the tenders which attract the restrictions due to specified ToT.]

A. Model Clauses for Tenders (including tenders issued manually or any electronic portal including GeM):

I. Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority. *Further, any bidder (including bidder from India) having specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India, shall also require to be registered with the same competent authority.*

II. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

III. "Bidder (or entity) from a country which shares a land border with India" for the purpose of this Order means: -

- (a) An entity incorporated, established or registered in such a country; or
- (b) A subsidiary of an entity incorporated, established or registered in such a country; or
- (c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
- (d) An entity whose beneficial owner is situated in such a country; or
- (e) An Indian (or other) agent of such an entity; or
- (f) A natural person who is a citizen of such a country; or
- (g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

IV. The beneficial owner for the purpose of (iii) above will be as under:

1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation—

a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent. of shares or capital or profits of the company;

b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

VI. [To be inserted in tenders for Works contracts, including Turnkey contracts] The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.

VII. The registration shall be valid at the time of submission of bid and at the time of acceptance of bid.

VIII. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution

Model Certificate for Tenders:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model Certificate for Tenders for Works involving possibility of sub-contracting:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any

work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model additional certificate by Bidders in the cases of specified ToT:

"I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder does not have any ToT arrangement requiring registration with the competent authority."

OR

"I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder has valid registration to participate in this procurement."

B. Model Certificate for GeM (to be taken by the GeM from seller during registration on GeM. GeM should also obtain this certificate from all existing bidders as soon as possible):

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this vendor/ bidder is not from such a country and does not have any specified Transfer of Technology (ToT) from such a country or, if from such a country or if having specified ToT from such a country has been registered with the Competent Authority. I hereby certify that this vendor/ bidder fulfills all requirements in this regard and is eligible to be considered for procurement on GeM. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"
